

114 **Sermeno vs.
International Paper
Company**

2025-01514573

Motion to Dismiss

Defendant International Paper Company has filed a Motion to Dismiss or Stay Proceedings pursuant to Code of Civil Procedure (CCP) section 410.30, the doctrine of exclusive concurrent jurisdiction, and this Court’s inherent authority to prevent duplicative litigation. (ROA #35.)

Defendant’s Requests for Judicial Notice at ROA #33 is **GRANTED**. (Evid. Code, § 452, subd. (d).)

In Defendant’s Notice of Motion and Motion, Defendant explicitly stated that it “moves this Court for an order to dismiss the present Action *with prejudice* or, in the alternative, stay the present Action in its entirety pending the resolution of a previously filed and actively litigated putative class and representative PAGA action, *Magana v. International Paper Company*, Case No. 2:24-cv-08867-CBM-MAR (C.D. Cal.), and/or a previously filed and actively litigated putative class action, *Sermeno v. International Paper Company*, Case No. 8:25-cv-01892-AH-(MARx) (C.D. Cal.).” (ROA #35, pp. 1-2, emphasis added.)

In its reply, Defendant disavows that it “never requested” “dismissal with prejudice,” acknowledging that instead it seeks dismissal only under CCP section 430.10 for forum non conveniens, which results in a dismissal without prejudice. (ROA #41 [Reply], p. 5.)

On 7/29/2026—i.e., 3 court days and 5 calendar days after the applicable deadline—Plaintiff Joshua Sermeno late-filed a partial opposition to the motion. (ROA #39.) The Court exercises its discretion to consider the late-filed opposition, but **ADMONISHES** Plaintiff both for his failure to respond to Defendant’s meet-and-confer efforts in advance of filing the motion and for his late-filing of the opposition.

Plaintiff does not oppose a stay of this action pending resolution of the *Magana* action but opposes the request for dismissal with prejudice. (*Id.*, passim.)

The Court **GRANTS IN PART** the motion as to the requested order to stay the instant action pending resolution of the first-filed case of *Magana v. International Paper Company*, Case No. 2:24-cv- 08867-CBM-MAR (C.D. Cal.) (“*Magana* action”), but **DENIES** the motion to the extent it seeks an order to dismiss the instant action with or without prejudice because Defendant has not cited any authority nor advanced any argument requiring or favoring dismissal over a stay under the circumstances.

The Court notes that Plaintiff cites *Archibald v. Cinerama Hotels* (1976) 15 Cal.3d 853, 857-860 for the proposition that “[f]or a California resident, the ordinary forum-non-conveniens remedy is a stay, not dismissal of the action.” (ROA #39 [Opp.], p. 1.) Indeed, the *Archibald* court held that “except in extraordinary cases a trial court has no discretion to dismiss an action brought by a California resident on grounds of forum non conveniens”; that “[a] determination that a plaintiff is domiciled here would

ordinarily preclude granting the defendant's motion for dismissal on the ground of forum non conveniens”; that “in the ordinary case, the doctrine of forum non conveniens does not permit the dismissal of an action itself, as distinguished from a stay of that action, brought by a California resident”; that “this limitation . . . reflects an overriding state policy of assuring California residents an adequate forum for the redress of grievances”; that “the exceptional case which justifies the dismissal of a suit under the doctrine of Forum non conveniens is one in which California cannot provide an adequate forum or has no interest in doing so”; and that “[e]xamples would include cases in which no party is a California resident or in which the nominal California resident sues on behalf of foreign beneficiaries or creditors.” (*Id.* at pp. 858-859, internal quotes & citations omitted.)

Defendant contends that *Archibald* is no longer good law, citing *Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 755-756. (Reply at pp. 5-6.) However, the cited portion of *Stangvik* relies on a 1986 amendment to CCP section 410.30 that added the following sentence to the statute *but was only effective until January 1, 1992*: “domicile or residence in this state of any party to the action shall not preclude the court from staying or dismissing the action.” (*Stangvik, supra*, at pp. 755-756.) The *Stangvik* court did find that the purpose of this amendment “was to overcome the holding of *Archibald* . . . and other cases . . . that a trial court was *powerless* to dismiss an action on the ground of forum non conveniens if the *plaintiff* was a California resident.” (*Id.* at p. 756, internal citation omitted, emphases original.) But the *Archibald* court did not hold that courts may not ever dismiss an action on the ground of forum non conveniens if the plaintiff is a California resident; it simply held that extraordinary circumstances must exist for a court to do so. (*Archibald, supra*, 15 Cal.3d at pp. 858-859.) Moreover, the Legislature has since amended section 410.30 again in 1972, and the sentence quoted in *Stangvik* no longer exists effective January 1, 1992. Defendant does not address this point. Additionally, *Archibald* has since been favorably cited by the Court of Appeal as continuing to stand for the proposition that trial courts should not, absent extraordinary circumstances, dismiss an action on forum non conveniens grounds when the plaintiff is a California resident. (See, e.g., *Van Keulen v. Cathay Pacific Airways, Ltd.* (2008) 162 Cal.App.4th 122, 129-130.)

Defendant has not show any extraordinary or exceptional circumstances here. Therefore, the Court finds that a stay is more appropriate than dismissal given that it allows the Court to protect the interests of the litigants and to assure that Plaintiff has an adequate forum to redress his grievance, pending resolution of the *Magana* action.

Accordingly, the Court **ORDERS** that the instant action is stayed pending the final resolution of the *Magana* action. (See CCP, § 1049 [“An action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied.”])

The Court sets a CMC for April 1, 2027 at 9:30AM to discuss the status of *Magana* and the parties positions on whether the stay should continue, be

		modified, or be lifted. The parties shall file a CMC statement addressing these matters 10 days prior to the hearing. Defendant shall give notice.
115	Gonzalez vs. Red Digital Cinema, LLC 2021-01236367	Motion for Final Approval of Class/PAGA Settlement Plaintiff Briseida Gonzalez’s Motion for Final Approval of Class Action and PAGA Settlement, Attorneys’ Fees, Litigation Expenses, and Class Representative Enhancement Payment is CONTINUED to October 15, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. [This is a putative wage-and-hour class action and PAGA matter. On 12/14/2021, Plaintiff Briseida Gonzalez, individually and on behalf of other members of the general public similarly situated, filed a class action complaint against Defendant Red Digital Cinema, LLC. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 4/4/2025 per the parties’ stipulation. (ROA #97.) The FAC alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (<i>Id.</i>) Defendant answered the FAC on 4/14/2025. On 4/30/2025, Plaintiff filed the Motion for Preliminary Approval of the Class Action and PAGA Settlement. On 2/26/2026, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #132.) On 3/6/2026, the Court entered the order granting preliminary approval. (ROA #141.) Plaintiff has submitted both a Joint Stipulation of Class Action and PAGA Settlement and an Amendment No. 1 to Joint stipulation of Class Action and PAGA Settlement (collectively, “Settlement Agreement”), along with a Class Notice (including amendments) for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$755,000. The GSA includes \$50,000 allocated for PAGA penalties. On 7/15/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Joint Stipulation of Class Action and PAGA Settlement and Amendment No. 1 to Joint stipulation of Class Action and PAGA Settlement (collectively,